

SECTION 7

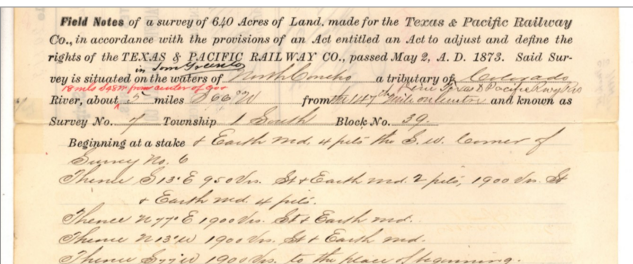
Block 39, Township 1 South, Texas & Pacific Railway Company Survey · Abstract 34 · Midland County, Texas

ONE SQUARE MILE *Desk Edition. Compiled from records, not walked*

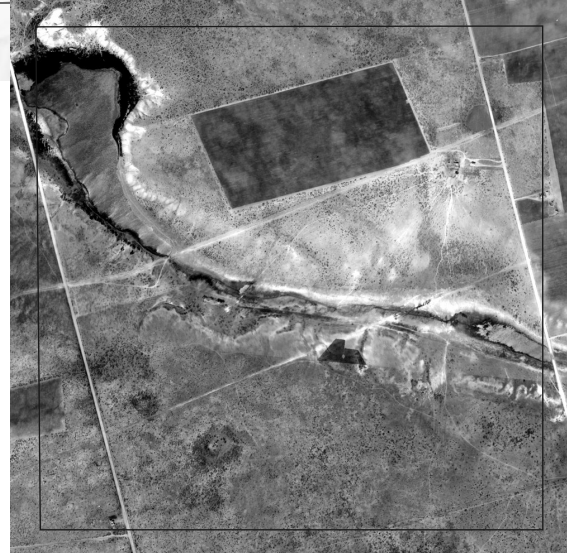
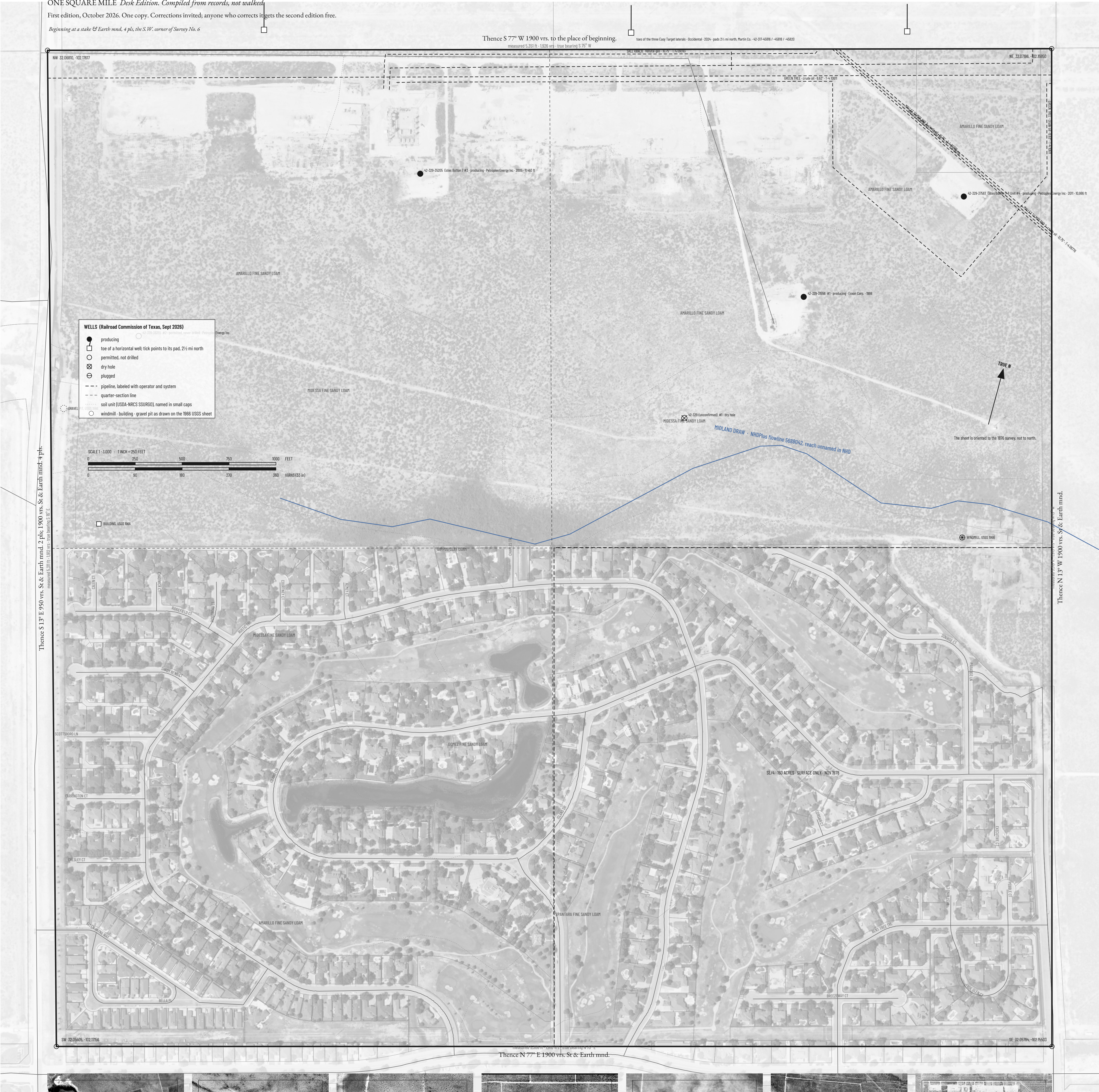
First edition, October 2026. One copy. Corrections invited; anyone who corrects it gets the second edition free.

Beginning at a stake & Earth mound, 4 pls, the S.W. corner of Survey No. 6

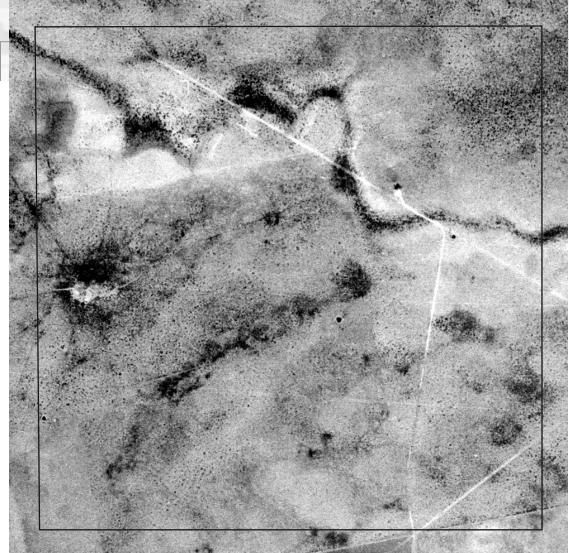
Surveyed 1 February 1876 and docketed under Martin County. Corrected to Midland County in red ink, 1887, two years after Midland County was organized. The county this ground sits in was itself a correction. On this sheet, red means the record disagreed with itself, or ran out.



Powell's field notes, 1 Feb 1876, as filed. "Martin," struck. GLO Bexar Scrip File 020113.



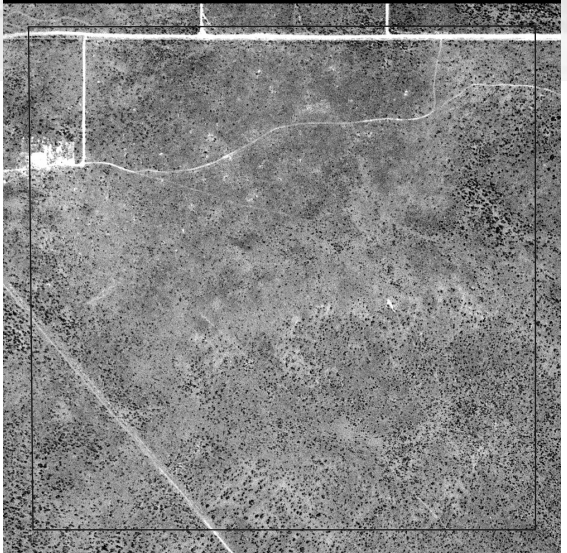
1946 USDA, 20 Feb 1946, two frames mosaicked
Range, one field, a full playa, outbuildings on the west line, no house. Placed on the draw, ±10



1954 USGS single frame, 1:63,000, 2 May 1954
Open range; the draw plain across the north. Placed on the draw, ±100 ft.



1965 USGS single frame, 1:27,400, 20 Feb 1965
Still range; a road on the west line, a pad at the draw. Placed on the draw, ± 100 ft.



1974 USGS single frame, 128,000, 19 Feb 1974
First graded corridors, a pad on the west line. The scan was mirrored; corrected here. ± 200 ft.



1984 USGS NHAP, 28 Oct 1984
Streets and a golf course under construction, south half. ±150 ft.



1995 USGS NAPP color-infrared, 19 Dec 1995
Course mature, south half built out. North half still range. ±150 ft.



2024 USDA MAIP, 26 Aug - 9 Sep 2024
Built out to the plot. North half: pads, gathering lines, a caliche yard. Orthoimage.

CHAIN OF TITLE, 1876-1983 · complete, no gaps

1876. Surveyed 1 Feb by deputy surveyor W. Powell, chain carriers L.E. Wright and E.C. Bennett, "on the waters of North Concho." Bearings in varas. Filed at the General Land Office 27 Dec.

1876. Land Scrip No. 3123, 25 May: the Texas & Pacific has built 203 miles, 4,624 feet of railroad. This section is part of what that construction earned. Odd-numbered — railroad land, not school land.

1883. Patented 15 Dec to Texas and Pacific Railway Co. Patent 540, Vol. 68, p. 503, 640 acres.

1906. Charles J. Canda, trustee of the Texas Pacific Land Trust — Mrs. Mary T. Edwards, 640 acres. Recorded 6 Jan, Deed Records 12/54. Three notes of \$795.

1911. Mary T. Edwards and heirs — S.H. Holloway, with Sections 6, 8, 17, 18; buyer assumes the 1906 notes. Four months later Holloway — S.W. Estes. The Estes years begin.

1921. Armintha Estes — Thelma Estes, 7 June, DR 304/6, 14 Dec. The whole section, her 1923 deeds of trust cover all 640 acres.

1940. Thelma Estes Brown and W.T. Brown — Magnolia Pipe Company, right-of-way across the 640 acres, 2 Dec. DR 67/531. That is the pipeline on the 1954 and 1966 USGS maps.

1941. Family partition, 31 Oct, four instruments in a row. Thelma Estes Brown — Aldridge Estes, 7 (DR 70/294). Aldridge — Thelma, Section 6, the same day. Both had taken land from S.W. and Armintha, Kin, plainly: the records never say how. Thelma died in 1983 or 84, in Laguna Hills, California.

1953, 1970. Ethel Estes, signing alone: a royalty deed on the 640 acres to Stanolind Oil & Gas, then an oil and gas lease to Pan American Petroleum — Stanolind under its new name. A share of whatever the ground would ever produce, sold before a well existed. When Aldridge died the records do not say; by 1953 she conveyed without him.

1976. Ethel Aldridge Estes — her three children, 14 Dec. DR 615/436-438.

1978. The Estes family sells the surface to Midland West Corporation, 21-22 Nov, three deeds. Price unstated, as Texas deeds are: part of it owed — a deed of trust on the SE/4 secures the developer's note back to Mrs. Estes, so the widow financed the buyer. The minerals stay with the family.

1979. The Estes heirs and Midland West — Pioneer Natural Gas Company, right-of-way, October, DR 673/712-714. Today's 16-in gas line; ONEOK West is Pioneer's successor.

1979. Midland West, about a dozen partners, open the Green Tree course in July.

1980-81. Midland West sells lots to Hallico Inc. — three warranty deeds, prices unstated, no note back — a Midland homeowner (incorporated May 1979; Neal Hall, president) that took 771 instruments through this courthouse in five years, buying lots and selling houses. One of those lots lies inside the ground platted the next year, which is why Hallico signs that plat.

1982, 8 Jan: Midland West sells 20,343 acres — Lots 20-23, Block 6, the seed of Green Tree North — to The Greens, a joint venture of Hallico, Dovecote Inc., and BSD Inc., for \$1,348,425 each, with a four-year build-out-over-keep and a promise to annex, plat, zone, pave, and pipe the land. DR 73/258.

1982. 26 Jan: Green Tree North plat recorded 1 Dec. Cabinet C, p. 134. Frank Mullums became majority owner of Midland West the same month.

1983, 26 June: the first Green Tree North lot is deeded to a homeowner — Lot 18, Block 2, from Midland West, DR 770/614.1 March: the members buy the clubhouse and both courses from Midland West for more than \$6 million. Green Tree North — 297 acres, 220 lots, nine more holes — under construction, 85 lots pre-sold. First National Bank of Midland carrying the paper. Three years later a First National branch is convicted in federal court of hiding his own stake in Midland West while the bank lent it \$1.925 million.

THE GROUND

Water. Ogallala aquifer 100–180 mile down the section. One City of Midland well inside the line, 147' N, unused. About ten desert irrigation wells drilled 2002–2024, 135–180 ft. Golf course well, 175 ft, 2021. Midland Draw crosses the north half and has carried its name on the Ogallala Water sheet from 1954 to 1960 – it never appeared across the ranch did. Powell's 1876 notes call this "waters of North Concho." The Ogallala aquifer is a water table on Midland by Midland Draw and Peak Creek. Ogallala is not on the Ogallala map.

Soil. About 60% Arroyo and Midessa fine sandy loam – well drained, "farmland of statewide importance." Bippus clay loam in the drain subject to occasional flooding. No hydric soils. Well below about 80 ft. "A sandy farm house with one sickle tree," as the man who sold it put it in 1977.

Oil. Fourteen locations on the Commission's map. Inside the line a dry hole drilled by John R. Parish in December 1980. Exxon's No. 1 of 1979 was abandoned. Petroleum's Estes Button? No. 2 (2005) and the "X" (2011) Fisker's Lodiwell 12008 (2008), among others. Haystack Resources' 1208 came up dry; Endavor's Stephens See No. 3 (2014), since plugged, and three permits that expired without a bearing. Under the north line, the toes of three Occidental horizontals – the Easy Target wells – spudded within four days of each other in early 2024 from one pad two and a half miles north in Martin County, laterals of 24,000 to 26,000 feet that come south and stop a hundred feet below the Ogallala. In early March 2024, the Ogallala was 100 to 150 ft below the surface, 0.0001 ccs per acre. The south county line, the Commission's code follows the surface hole every time. Two crude grading lines – Oryx Midland Oil Pioneer's "Green Tree" zone, 6.63 in, 2-A Permit 10611, issued in 2024 to serve those pads – and one 16-in gas line (ONEOK WestEx, on Gathering Natural Gas's 1979 right-of-way) cross the north half. The leases are still named for the family.

Before the streets. Open rangeland on every USGS edition 1954–1985: oil wells, drill holes, a gravel pit, a pipeline. Streets first appear 1991.

The county. Summer 1977: two men buy 320 acres from the Estes family, one of them the head pro at Ranchland Hills. First National Bank finances it – \$8.9 million, then men buy. Drill-trail access until 1980. The opens upon July 1979; the members own't from March 1983; the north line follows; rebuilt 2018.

The measure. Powell called 1,900 yards the mile. The county's population measures 1,910 to 2,026. The section holds about 650 acres against 640 patented – ten acres of survey excess that nobody has had to account for in 150 years. And the lot is not his measure: every acre is 4,356 sq ft, 1/4 off north. He ran his lines by needle and wad the variation down without correcting for it, the whole block of the fossil of his compass.

COULD NOT BE CONFIRMED

Complied records, not walked. The following were looked for and not found, or found and not trusted:

- One dry hole, Well No. 1, plotted from the Commission's hardcopy map with no API number on file. Its operator and date are in no digital record.
- "What the first lot sold for. A course-front lot was asking \$55,000 that winter; the first deed of trust is indexed at a figure too small to believe."
- Any 1930s–40s aerial. A 1944 Air Force frame exists at TSGIO and is on order; it did not arrive in time for this edition.

Where on the ranch the scales of 1916 and the reunion of 1921 were: Not on this collection, which had no house in 1946; which of the family's other sections is not known.

If you know any of these, write. Second edition is free to anyone who corrects the first.

Sources. Texas General Land Office (patent, field notes, script). Midland County Clerk (deed records as cited). Midland Central Appraisal District (abstracts, parcels). USGS topographic and EarthExplorer (topographic sheets 1954–1959, features from the 1966 Northwest Midland 7.5 sheet; aerials 1954, 1965, 1974, 1984, 1995). WellWiki, errc, and teaxa-digital mirrors of RRC permit and completion data. Midland Reporter-Telegram 1940–1999 via the Southwest Collection, Texas Tech University. Texas Comptroller entry records: USDA 1964 aerials, frames 67–68 (TAGERS); USDA NHDPlus: federal watersheds of the Aug and 8 Sep 2004, via USGS EarthExplorer. Railroad Commission of Texas GIS and 2024 T-4 permit register; Texas Water Development Board, USDA-NRCS Wet Soil Survey, EIA (WATERS); NHDPlus: federal court records as cited. Full source log, fifty-plus rows, at github.com/acwills88/Approved-and-paid-for.

Gathered by Skippy (Mesa Maps). Designed by Claude (Anthropic). Oversee and square for by a resident of the section, who is not named on it. No phone calls were made. Sheet oriented to the 1876 survey; true north 15° right of page-up. Scale 1:3,000. Aerial strip: each frame's placement error is stated in its caption.